

FREELANCE CREATIVE SERVICES AGREEMENT

PARTIES

This Agreement is made between: Fraser Hawkshaw Media Limited, a company registered in England and Wales, of Suite RA01, 195-197 Wood Street, London, E17 3NU ("the Company"); and the individual or business named in the signature block at the end of this Agreement, engaged by the Company to provide creative or production services on a self-employed, project-by-project basis ("the Freelancer"), together referred to as "the Parties", and each individually as a "Party".

1. COMMUNICATION WITH CLIENTS

While engaged on a Company shoot or project, the Freelancer should route all client-facing communication through the Company, whether by group chat, email, or any other channel the Company sets up for the job.

The Freelancer should not agree fees, deadlines, scope changes, or extra work directly with the client without the Company's sign-off first. This keeps everyone working from the same information and avoids the client receiving conflicting instructions from different members of the crew.

2. SUBMITTING FOOTAGE, FILES & DELIVERABLES

Raw footage, edits, and any other deliverables produced on a project should be sent to the Company, not directly to the client, unless the Company has agreed otherwise in writing for that job.

Drafts and final files should not be released to the client independently of the Company.

3. RELEASING & CREDITING WORK

Content from a shoot may only go public once both the client and the Company have signed it off. Until the client has launched the campaign or project publicly, treat all material as confidential and unreleased.

Before posting anything from a job to a personal portfolio, reel, or social account, check with the Company that the content has cleared approval. Where asked, credit the work as produced for @fraserhawkshaw or use the credits list supplied by the Company.

4. NOT GOING AROUND THE COMPANY ON CLIENT WORK

For the duration of this engagement, and for 12 months after it ends, the Freelancer agrees not to pitch for, accept, or carry out work directly for any client they were introduced to through the Company, except where the Company has agreed to this in writing in advance.

The Freelancer acknowledges that the Company has invested significantly in building and maintaining its client relationships, and that the Company typically retains a margin of approximately 50% of the project value on work placed through it. Any breach of this clause therefore causes the Company a direct and measurable loss equivalent to that margin on the work taken.

Should this clause be breached, the Company reserves the right to invoice the Freelancer a sum of 50% of the gross value of any work the Freelancer carries out directly for the relevant client during the restricted period. The Freelancer acknowledges this represents a genuine pre-estimate of the profit margin the Company would have earned had the work been placed through the Company in the normal way, and not a penalty.

This right to invoice survives the end of this Agreement, however it comes about, and any sum invoiced under this clause is a debt due and payable within 30 days of the invoice date, carrying interest under the Late Payment of Commercial Debts (Interest) Act 1998 from the due date until paid.

5. CONFIDENTIALITY

Anything learned about the Company's clients, campaigns, budgets, contacts, or internal operations that isn't already public should stay that way — no sharing with third parties, no posting online, without the Company's written go-ahead first. This applies during the project and afterwards.

6. FEES, INVOICING & PAYMENT

The Freelancer is engaged by, and invoices, the Company — not the client directly.

Invoices should be sent to:

Fraser Hawkshaw Media Limited

Suite RA01

195-197 Wood Street

London

E17 3NU

Email: contact@fraserhawkshaw.com

Unless agreed otherwise in writing, payment is due within 30 days of the Company receiving a correctly issued invoice. The Company may withhold payment, in whole or part, where deliverables have not been supplied or are not to a reasonable professional standard.

Any expenses must be agreed with the Company in advance and supported by valid receipts at the time of invoicing.

7. BOOKING CONFIRMATION

Each individual booking will be confirmed by the Company in writing, setting out the date, location, role, agreed fee, and any specific requirements for that job. The Freelancer's acceptance of that confirmation — whether in writing or by attending the job — constitutes agreement to those specific terms alongside the terms of this Agreement.

8. CONDUCT ON SITE

The Freelancer is expected to turn up on time, follow the direction of the Company on site, and treat clients, and other crew with professionalism and respect, including in relation to any health and safety guidance given for the location or shoot.

Persistent lateness, no-shows, unprofessional conduct, or behaviour that puts a client relationship at risk may result in the Company ending the working relationship, including on the current job, without further payment for incomplete or undelivered work.

The same standard of professional conduct applies to the Freelancer's interactions with the Company and its representatives. Abusive, threatening, intimidating, or persistently disrespectful behaviour directed at any representative of the Company — whether on site, in written communications, or otherwise — will be treated as a serious breach of this Agreement and may result in immediate termination of the current booking and this Agreement, with no further payment for work not yet complete.

9. ATTENDANCE, CANCELLATION & NO-SHOWS

If the Freelancer is unable to carry out a booked job, they must tell the Company as soon as they reasonably can. Provided enough notice is given for the Company to arrange a suitable replacement, and the Freelancer cooperates in briefing or handing over to that replacement, the cancellation will not be treated as a breach of this Agreement.

A "No-Show" means the Freelancer fails to attend a booked job at all, or cancels with so little notice that the Company is unable to arrange a suitable replacement in time, leaving the Company unable to deliver for the client on that job. Because of the damage this can cause to the Company's relationship with the client and its reputation, a No-Show is treated as a serious breach of this Agreement.

Where a No-Show occurs: the Freelancer forfeits any fee for that booking; the Company may invoice the Freelancer for any reasonable costs and losses caused directly by the No-Show, including the cost of securing a replacement at short notice and any fee reduction, credit, or refund given to the client; and the Company may end this Agreement, or the relevant booking, with immediate effect.

For example: if the Freelancer was booked for a job at a fee of £300, and the Company has to engage a replacement at short notice for £500, the Freelancer will not receive the £300 fee for that booking, and will additionally be liable to pay the Company the £200 difference between their fee and the cost of the replacement.

Any sum invoiced under this clause is a debt due and payable by the Freelancer within 30 days of the invoice date, and will carry interest under the Late Payment of Commercial Debts (Interest) Act 1998 from the due date until paid. This clause, and the Company's right to invoice and recover sums under it, survives the end of this Agreement or the relevant booking, however that comes about.

10. OWNERSHIP OF THE WORK

Unless agreed otherwise in writing, everything the Freelancer creates under this engagement — footage, edits, and any other output — is treated as work made for hire and belongs to the Company from the moment it's created.

Where that doesn't apply automatically under law, the Freelancer assigns all worldwide rights, including copyright, in that work to the Company, and waives any moral rights to the fullest extent the law allows.

The Freelancer should not reuse, resell, or otherwise commercially exploit the deliverables without the Company's written permission first.

11. INSURANCE & EQUIPMENT RESPONSIBILITY

Insurance

The Freelancer is responsible for holding and maintaining their own valid insurance throughout any engagement with the Company, including as a minimum:

- public liability insurance to a level appropriate for the environments in which they are working, including live events, venues, and public spaces; and
- professional indemnity insurance appropriate to the nature of the services they are providing.

The Company may request evidence of the Freelancer's insurance before or during an engagement, and the Freelancer agrees to provide this promptly on request. Failure to hold adequate insurance does not affect the Freelancer's liability to the Company or its clients under this Agreement.

The Freelancer's own equipment

Where the Freelancer uses their own equipment on a job, they do so at their own risk. The Company accepts no responsibility for any loss, theft, or damage to the Freelancer's personal equipment while on a shoot, in transit, or at any venue, and will not contribute to repair or replacement costs arising from such loss or damage.

The Freelancer is responsible for ensuring their own equipment is adequately covered by their own insurance policy. The Company's equipment insurance does not extend to cover freelancer-owned kit.

Company equipment

Where the Company provides equipment for the Freelancer to use on a job, the Freelancer must take reasonable care of it at all times. The Freelancer will be liable for any loss, theft, or damage to Company equipment caused by their own negligence, misuse, or failure to follow reasonable instructions given by the Company. In such cases, the Company may recover the reasonable cost of repair or replacement from the Freelancer, which may be deducted from outstanding fees where applicable.

The Freelancer must report any damage to or loss of Company equipment to the Company as soon as reasonably possible after it occurs.

12. SELF-EMPLOYED STATUS

The Freelancer is engaged as a self-employed contractor, not as an employee of the Company. Nothing here creates an employment relationship, partnership, or joint venture between the parties, and the Freelancer remains responsible for their own tax and National Insurance affairs.

13. LIABILITY & INDEMNITY

The Freelancer agrees to cover the Company and its clients for any claims, losses, or costs (including reasonable legal fees) arising from the Freelancer's own negligence or misconduct, a breach of this Agreement, infringement of third-party rights, or unauthorised use of third-party material (such as music, images, or footage) supplied by the Freelancer.

The Company is not liable for indirect or consequential losses connected to a project or this Agreement, and the Company's total liability under this Agreement is capped at the fees actually paid to the Freelancer for the relevant job.

14. ENDING THE ARRANGEMENT

Either party may end this Agreement, or a specific booking under it, by written notice where the other party is in material breach of these terms. Clause 4 (Not Going Around the Company), Clause 5 (Confidentiality), and Clause 10 (Ownership of the Work) continue to apply after this Agreement ends.

15. GOVERNING LAW

This Agreement is governed by the laws of England and Wales, and the courts of England and Wales have exclusive jurisdiction over any dispute arising from it.

16. AGREEMENT

By signing below, both parties confirm they accept the terms set out above.

Freelancer

Print Name:

Role:

Signature:

Date:

For Fraser Hawkshaw Media Limited

Print Name:

Role:

Signature:

Date:
